

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

Short title.

3. This Act may be cited as the Consolidated Fund Act, 1962.

CHAPTER 8

Civil Aviation (Eurocontrol) Act, 1962

ARRANGEMENT OF SECTIONS

Section

1. The Convention and the Organisation.
2. Status and privileges of Eurocontrol.
3. Provision of funds and facilities for Eurocontrol.
4. Charges for air navigation services.
5. Use of certain records as evidence.
6. Offences.
7. Supplementary provisions.
8. Interpretation and minor amendment.
9. Application to Channel Islands, Isle of Man, etc.
10. Short title, commencement and extent.

An Act to make provision in connection with the international convention relating to co-operation for the safety of air navigation, known as the Eurocontrol Convention; to provide for the recovery of charges for services provided for aircraft; to authorize the use of certain records as evidence in proceedings for the recovery of such charges or proceedings under the Air Navigation Order; and for purposes connected with the matters aforesaid. [21st February, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

The
Convention
and the
Organisation.

1.—(1) In this Act “the Convention” means the International Convention relating to co-operation for the safety of air navigation (entitled Eurocontrol) concluded at Brussels on the thirteenth day of December, nineteen hundred and sixty (copies of which were laid before Parliament by command of Her Majesty on the thirteenth day of June, nineteen hundred and sixty-one); and “the Organisation” means the European Organisation for the Safety of Air Navigation established by the Convention and therein referred to as Eurocontrol.

(2) Except where the context otherwise requires, references in this Act to the Organisation include references to the Permanent Commission for the Safety of Air Navigation and the Air Traffic Services Agency (in this Act referred to as the Agency) comprised in the Organisation.

2.—(1) The Organisation shall have the legal capacity of a body corporate ; and anything which may be required or authorised by law to be done by or to the Organisation may be done by or to the Agency on behalf of the Organisation.

Status and
privileges of
Eurocontrol.

(2) The Organisation shall be entitled to the exemptions and reliefs described in paragraphs 3 to 5 of the Schedule to the International Organisations (Immunities and Privileges) Act, 1950 (rates and taxes, import duties and import and export restrictions).

(3) Any rule of law relating to the inviolability of the official archives and premises of an envoy of a foreign sovereign Power accredited to Her Majesty shall extend to the official archives of the Organisation, and to premises occupied by the Organisation wholly or mainly for the housing of its installations ; and without prejudice to the foregoing provisions, no judgment or order of any court shall be enforced by the levying of execution or by diligence upon anything forming part of any such installations :

Provided that this subsection (except so far as it relates to execution or diligence) shall not preclude access to any premises, or the inspection of any record or document,—

(a) by a constable or other person acting in the execution of a warrant or other legal process ;

(b) by a Court of Inquiry or an Inspector of Accidents acting in pursuance of regulations made under section ten of the Civil Aviation Act, 1949 (investigation of accidents) ; or

(c) by a constable having reason to believe that an offence has been or is being or is about to be committed on the premises.

(4) In this section “ installations ” means apparatus for locating, directing, affording navigational aid to, or otherwise communicating with aircraft in flight, including apparatus for recording or processing material received or transmitted by such apparatus, and any other apparatus for use in connection with any such apparatus as aforesaid.

3.—(1) The Minister may from time to time pay to the Organisation such sums on account of its expenses as he may with the consent of the Treasury determine, being sums for the payment of which Her Majesty's Government in the United Kingdom are liable under the Convention.

Provision of
funds and
facilities for
Eurocontrol.

(2) The Minister or the Secretary of State may provide for the Organisation any land, premises, installations, equipment or services (including the services of personnel), whether within or

without the United Kingdom, which may be required for the purposes of or in connection with the functions of the Organisation under the Convention.

(3) The following provisions of the Civil Aviation Act, 1949, that is to say—

- (a) section twenty-four (which enables the Minister to obtain rights over land in order to secure the safe and efficient use for civil aviation purposes of land which is vested in him or which he proposes to acquire) ; and
- (b) section twenty-six (which enables the Minister to exercise control over land in order to secure the safe and efficient use for civil aviation purposes of land, structures, works or apparatus vested in him or which he proposes to acquire or instal),

shall apply in relation to land, structures, works and apparatus vested in or occupied by the Organisation, or proposed to be acquired, occupied or installed by the Organisation, as they apply in relation to land, structures, works or apparatus vested in, or proposed to be acquired or installed by, the Minister.

(4) Any easements, servitudes or rights created by order under the said section twenty-four as extended by this section may be created in favour of the Organisation, and any reference in the said Act to an order for the creation of easements, servitudes or rights in favour of the Minister shall be construed accordingly.

(5) Any expenses incurred by the Minister or the Secretary of State by virtue of this section shall be defrayed out of moneys provided by Parliament, and any sums received from the Organisation by either of them in consideration of anything done under this section shall be paid into the Exchequer.

Charges for air
navigation
services.

4.—(1) The Minister may by statutory instrument make regulations for requiring the payment to the Organisation or to the Minister of charges of such amounts as may be prescribed by the regulations in respect of navigation services provided by aircraft, being services provided by the Organisation in pursuance of the Convention, or provided by the Minister, as the case may be ; and any sums received by the Minister under such regulations shall be paid into the Exchequer.

(2) The liability for any charges payable by virtue of regulations under this section may be imposed upon the operators of aircraft for which those services are available (whether or not they are actually used or could be used with the equipment installed in the aircraft) or upon the managers of aerodromes used by such aircraft, or partly upon those operators and partly upon those managers.

(3) The charges to be prescribed by any such regulations as aforesaid shall—

- (a) in the case of charges payable to the Organisation, be at such rates as the Minister may determine in pursuance of tariffs approved under the Convention ;
- (b) in the case of charges payable to the Minister, be at such rates as the Minister may, with the consent of the Treasury, determine ;

and the regulations may prescribe different charges in respect of aircraft of different classes or descriptions or in respect of aircraft used in different circumstances, and may dispense with charges in such cases as may be prescribed by or determined under the regulations.

(4) For the purpose of facilitating the assessment and collection of charges payable by virtue of regulations under this section, the regulations may make provision for requiring operators of aircraft or managers of aerodromes—

- (a) to make such records of the movements of aircraft, and of such other particulars relating to aircraft, as may be prescribed by the regulations, and to preserve those records for such period as may be so prescribed ;
- (b) to produce for inspection, at such times and by such officers of the Organisation or of the Minister as may be so prescribed, any records which are required by the regulations or the Air Navigation Order to be preserved by those operators or managers ;
- (c) to furnish to the Organisation or to the Minister such particulars of any such records as may be so prescribed.

(5) Any statutory instrument containing regulations made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

5.—(1) In any proceedings to which this section applies, any record made by any such authority or person as may be designated for the purposes of this subsection, or by a person acting under the control of such an authority or person, being a record purporting to show—

- (a) the position of any aircraft at any material time ; or
- (b) the terms or content of any message or signal transmitted to any aircraft, either alone or in common with other aircraft, or received from any aircraft, by the first-mentioned authority or person, or by a person acting under the control of that authority or person,

shall, if produced from the custody of that authority or person, be evidence, and in Scotland sufficient evidence, of the matters appearing from the record.

Use of certain
records as
evidence.

(2) This section applies to the following proceedings, that is to say—

- (a) proceedings for the recovery of any charges payable by virtue of regulations under section four of this Act, or for an offence under this Act committed by failure to make records in accordance with regulations made in pursuance of subsection (4) of that section, or by furnishing false particulars of records so made ;
- (b) proceedings for an offence under the Air Navigation Order being an offence committed by failure or refusal to comply with any rules or directions relating to the navigation of aircraft ;

and the authorities or persons to be designated for the purposes of subsection (1) of this section shall be designated, in relation to such proceedings, by regulations under the said section four or by the Air Navigation Order, as the case may be.

(3) The references in subsection (1) of this section to a record made by or under the control of any authority or person include references to a document or article purporting to be a copy of a record so made, and certified to be a true copy by or on behalf of that authority or person ; and in relation to such a copy that subsection shall have effect as if the words “ if produced from the custody of that authority or person ” were omitted.

Offences.

6.—(1) Any person who, without reasonable cause, fails to comply with any requirement of regulations made by virtue of subsection (4) of section four of this Act shall be liable on summary conviction to a fine not exceeding one hundred pounds.

(2) Any person who, being in possession of information furnished to or obtained by him in pursuance of regulations under the said subsection (4), discloses that information otherwise than—

- (a) with the consent of the person by whom it was furnished or from whom it was obtained ; or
- (b) for the purposes of the regulations ; or
- (c) for the purposes of any proceedings arising out of this Act, or of any criminal proceedings whether so arising or not ; or
- (d) for the purposes of any public inquiry or Inspector's investigation held or carried out in pursuance of regulations made under section ten of the Civil Aviation Act, 1949 (investigation of accidents) ; or
- (e) for the purpose of any report of any such proceedings, inquiry or investigation as aforesaid,

shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both.

(3) Any person who, in furnishing in pursuance of such regulations any such particulars as are described in paragraph (c) of the said subsection (4), furnishes any particulars which to his knowledge are false in any material particular, or recklessly furnishes any particulars which are false in any material particular, shall be liable—

(a) on summary conviction, to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both ;

(b) on conviction on indictment, to a fine or to imprisonment for a term not exceeding two years or to both.

(4) Any person who wilfully certifies any document or article to be a true copy of any such record as is mentioned in subsection (1) of section five of this Act knowing it not to be a true copy shall be liable—

(a) on summary conviction, to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both ;

(b) on conviction on indictment, to a fine or to imprisonment for a term not exceeding two years or to both.

(5) References in the Forgery Act, 1913, to a document shall be construed as including a reference to any record, not being a document within the meaning of that Act, which is made as described in subsection (1) of the said section five and which purports to show as regards any aircraft any such information as is mentioned in paragraph (a) or (b) of that subsection.

7.—(1) Part VI of the Civil Aviation Act, 1949 (which contains supplementary provisions applicable to certain enactments contained in that Act, including provisions relating to the extra-territorial effect of Orders in Council and regulations, and savings in respect of Crown aircraft) shall have effect as if sections four to six of this Act were included among the enactments to which the said Part VI applies. Supplementary provisions.

(2) Without prejudice to section fifty-eight of the said Act (under which orders and regulations made under any enactment to which Part VI of that Act applies may provide for the detention of aircraft to secure compliance therewith), regulations under section four of this Act may make provision—

(a) in the case of default in the payment of any charge payable by an operator under the regulations, for authorising the detention, pending payment, of the aircraft in respect of which the charge was incurred or of any other aircraft of which the person in default is the operator at the time when the detention begins ;

- (b) in the case of default in complying with any requirement imposed by the regulations on the operators of aircraft with respect to the production for inspection, or the furnishing of particulars, of any records, for authorising the detention, pending compliance, of any aircraft of which the person in default is the operator at the time when the detention begins ;

and such regulations may make such further provision as appears to Her Majesty in Council to be necessary or expedient for securing such detention.

(3) A court in any part of the United Kingdom shall have jurisdiction—

- (a) to hear and determine a claim for charges payable to the Minister by virtue of regulations under section four of this Act, notwithstanding that the person against whom the claim is made is not resident within the jurisdiction of the court ;
- (b) to hear and determine a claim against the Organisation for damages in respect of any wrongful act, neglect or default, notwithstanding that that act, neglect or default did not take place within the jurisdiction of the court or that the Organisation is not present within the jurisdiction of the court :

Provided that a court shall not have jurisdiction by virtue of paragraph (b) of this subsection in respect of damage or injury sustained wholly within or over a country to which this Act does not extend.

Interpretation
and minor
amendment.

8.—(1) In this Act, unless the context otherwise requires, the following expressions have the following meanings respectively, that is to say—

- “ aerodrome ” has the same meaning as in the Civil Aviation Act, 1949 ;
- “ the Air Navigation Order ” means any Order in Council in force under section eight of the Civil Aviation Act, 1949 ;
- “ manager ”, in relation to an aerodrome, means a person who is in charge of, or holds an aerodrome licence (within the meaning of the Civil Aviation (Licensing) Act, 1960) in respect of, the aerodrome ;
- “ the Minister ” means the Minister of Aviation ;
- “ navigation services ” includes information, directions and other facilities furnished, issued or provided for the

purposes of or in connection with the navigation or movement of aircraft ;

“ operator ”, in relation to an aircraft, means the person for the time being having the management of that aircraft ;

“ record ” includes, in addition to a record in writing—

(a) any disc, tape, sound-track or other device in which sounds or signals are embodied so as to be capable (with or without the aid of some other instrument) of being reproduced therefrom ;

(b) any film, tape or other device in which visual images are embodied so as to be capable (as aforesaid) of being reproduced therefrom ; and

(c) any photograph ;

and any reference to a copy of a record includes, in the case of a record falling within paragraph (a) only of this definition, a transcript of the sounds or signals embodied therein, in the case of a record falling within paragraph (b) only of this definition, a still reproduction of the images embodied therein, and in the case of a record falling within both those paragraphs, such a transcript together with such a still reproduction.

(2) Any reference in this Act to any other enactment is a reference thereto as amended by or under any other enactment, including this Act ; and any such reference to the Convention includes a reference to any amendment of the Convention which may be agreed upon between the contracting parties thereto.

(3) The definition of “ operator ” contained in this section shall be substituted for the definition of that expression in section ten of the Civil Aviation (Licensing) Act, 1960, and cognate expressions in that Act shall be construed accordingly.

9.—(1) Her Majesty may by Order in Council direct that this Act shall extend, subject to such exceptions, adaptations and modifications as may be specified in the Order, to—

Application
to Channel
Islands, Isle of
Man, etc.

(a) any of the Channel Islands or the Isle of Man ;

(b) any colony, protectorate or protected state ;

and any such Order in Council may contain such transitional and other consequential provisions as appear to Her Majesty to be expedient, and may be varied or revoked by a subsequent Order in Council.

(2) References in this section to a protectorate and to a protected state shall be construed as if they were references contained in the British Nationality Act, 1948.

Short title,
commence-
ment and
extent.

10.—(1) This Act may be cited as the Civil Aviation (Eurocontrol) Act, 1962.

(2) This Act (except this section) shall come into operation on such date as the Minister may by order appoint; and different dates may be appointed by order under this subsection for different purposes of this Act.

(3) It is hereby declared that this Act extends to Northern Ireland; and for that purpose any reference in this Act to an enactment of the Parliament of the United Kingdom is a reference to that enactment as it applies in Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Forgery Act, 1913	3 & 4 Geo. 5. c. 27.
British Nationality Act, 1948	11 & 12 Geo. 6. c. 56.
Civil Aviation Act, 1949	12, 13 & 14 Geo. 6. c. 67.
International Organisations (Immunities and Privileges) Act, 1950	14 Geo. 6. c. 14.
Civil Aviation (Licensing) Act, 1960	8 & 9 Eliz. 2. c. 38.

CHAPTER 9

Local Government (Financial Provisions etc.) (Scotland) Act, 1962

ARRANGEMENT OF SECTIONS

Section

1. Revision of apportionment of expenditure and general grants among local authorities.
2. Payments in lieu of rates by British Transport Commission and Electricity Boards in Scotland.
3. Rating of Gas Boards.
4. Reduction and remission of rates payable by charitable and other organisations.
5. Provisions supplementary to foregoing section.
6. Suspension of annual provision for repayment of sums borrowed by local authorities.
7. Deputy secretary of Valuation Appeal Committee.
8. Amendment of s. 237 (2) of Act of 1947.
9. Alteration of valuation roll.
10. Provisions as to orders.